

Sir,

- A) The Hon'ble President, Administrative Tribunal, Panaji Goa, vide order dated 8/10/2013 and 15/10/2013 in case number 4/2013/AT/ADM/PERM/COM/BAMBOLIM conveyed permission to file suit against Mr. Pascoal Trinidade and others in respect of properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim Tiswadi Taluka having area of 35,600.00 square meters, 26,825.00 square meters and 35,075.00 square meters respectively (total area of 97,500.00 square meters).
- B) The said suit was necessary since three sale deeds related to above properties were executed in the year 2006 based on compromise decree dated 9/11/1998.
- C) After obtaining permission Comunidade of Bambolim filed Special Civil Suit No. 52/2013/A against Pascoal Trinidade and others before Civil Judge Senior Division at Panaji, challenging three sale deeds dated 25/4/2006 and for recovery of possession of the properties surveyed under survey no. 93/2, 93/3 and 93/4 of village Bambolim, Tiswadi Taluka by claiming right of ownership. The said suit along with other related



proceedings are going on for the last more than twelve years.

D) The defendants No. 1 and 2 in the said suit, namely Pascoal Trinidad and Albertina Trinidad in Special Civil suit No. 52/2013/A, submitted a proposal to the Comunidade of Bambolim, vide letter dated 20/12/2020 for settling the dispute relating to the land surveyed under survey No. 93/2, 93/3 and 93/4. The said application was placed in the extraordinary general body of components in the meeting held on 3/1/2021 by adhering the procedure laid down in the Code of Comunidades (viz publication of notice in government gazette and local newspaper). The components of Comunidade, unanimously resolved and approved to settle the dispute related to land surveyed under survey No. 93/2,93/3 and 93/4 of village BAMBOLIM Tiswadi Taluka considering number of litigations and counter litigations which will lead to many years so as to put an end to the litigations in the best interest of Comunidade. The Minutes of the settlement are recorded in the minutes Book (Actas) at page 106 overleaf to 112 overleaf in the extraordinary meeting held on 03/01/2021 in accordance with Article 30 (4) (g) of Code of Comunidades. The copy of the minutes of the meeting dated 3/1/2021 are annexed as **Annexure I**



No. 415/94/A. The said temporary injunction Application was dismissed by the Hon'ble Court vide Order dated 17th June 1996.

- 3) That, thereafter the Special Civil Suit no.222/94/A was abruptly compromised by compromise decree dated 21/11/1998 with compromise terms including four other properties namely survey No. 90/1, 93/2, 93/3 and 93/4 of village Bambolim, without obtaining permission from this Hon'ble Administrative Tribunal and the compromise terms were signed by the then special attorney of the Comunidade without following the procedure.. The properties surveyed under survey No. 90/1,93/2,93/3 and 93/4 of village Bambolim were not subject matter of the said Civil Suit no. 222/94 but were included in the compromise terms. The compromise terms dated 19/11/98 and decree dated 21/11/98 is exhibited as **Annexure V colly.**

- 4) That the then Special Attorney Shri. Jeronimo M. Monteiro after signing the consent terms dated 19/11/98 and Decree dt. 21/11/98 did not disclose to the then Managing Committee or presented before the General Body of the Gaonkars and the decree was known only in the year 2009 from the village Panchayat of Curca, Bambolim and Talaulim vide letter dated 02/01/2009 in



response to letter dated 10/02/2008 under Right to Information Act 2005 of the then President and Attorney of Comunidade.

- 5) At this time two gaonkars of Comunidade Mr. Benevelo B.A.de Souza and another also filed Civil Suit no.66/2009 (Comunidade being respondent transposed as Plaintiff by Court Order dated 16 October 2014) in respect of the properties bearing survey No.93/2,93/3 and 93/4 as well as property under survey No. 89/3 and 90/1 of village Bambolim challenging the said decree and development in the said plots.
- 6) That after the knowledge of the decree (21/11/98) the then committee members filed Civil Misc. Application no.6/2010 on behalf of Comunidade of Bambolim to set aside/ recall consent decree dated 21/11/98 under Section 151 and Order XXIII Rule 3 of Code of Civil Procedure. The copy of the Civil Misc. Application no. 6/2010 is exhibited and annexed as **Annexure VI**.
- 7) At this time a Writ petition No. 102/2009 was filed by some components/Gaonkars of Comunidade de Bambolim and direction were issued by Hon'ble High Court, Bombay Bench at Panaji vide Order dated 18/2/2009 to the Administrator of Comunidades and



Collector, to act in accordance with law and pass appropriate order.

- (i) The Administrator of Comunidades passed Order on 03/07/2009 directing the Comunidade to initiate appropriate proceedings in law to challenge all the actions as the same cannot be sustained.
 - (ii) Likewise, the Dy. Collector & SDO North Goa Panaji in case no. ILL/CNV/19/ TIS/2009 after inquiry passed judgement and Order on 01/08/2011 in Case No. ILL/CNV/19/2009 that land surveyed under survey no.93/2, 93 /3 and 93/4 of village Bambolim are not tenanted land and survey No. 90/1 is tenanted agriculture land and hence no conversion is permissible.
- 8) The judgment and order dated 1/8/2011 passed by the Dy, Collector and SDO Panaji in case no. ILL/CNV/19/ TIS/2009 was challenged by Ms. Raghurai Tamba before the Administrative Tribunal in Land Revenue Appeal No. 62/2011 as regards to survey No. 90/1 of village Bambolim which was declared as tenanted. The said appeal is remanded vide Order dated 21/6/2017 by the Hon'ble President, Administrative Tribunal Panaji to the learned Dy. Collector & SDO North Goa Panaji for giving fresh decision in accordance with law after providing



reasonable opportunity to the parties to the proceedings. Presently the case is pending before the Dy, Collector & SDO Panaji as LRC/ 19/2009.

9) The Comunidade of Bambolim also filed Land Revenue Appeal with an application for condonation of delay being application No. Misc/Apl/216/2013/Codone before the Administrative Tribunal Panaji against the Judgement and order Dated 1/8/2011 passed by the Dy. Collector & SDO Panaji in case No. ILL/CNV/TIS/2009 which was dismissed by the Administrative Tribunal vide Order dated 22/3/2016. The said Order is challenged by the Comunidade before the Hon'ble High Court Bombay Bench at Panaji in Writ Petition No. 558/2016 which is pending.

10) During this time some other Gaonkars filed Writ petition No. 506,557 & 577/2009 & 657/2011 before the Hon'ble High Court Bombay Bench at Panaji challenging development of land which were decided by considering the judgement an order dated 1/8/2011 passed by the Dy. Collector and SDO Panaji in case No. ILL/CNV/19/TIS/2009. The Hon'ble High Court dismissed the above Writs Petitions by common Order dated 29/3/2012 with liberty to approach competent forum or courts with the observation that the inquiry the petitioner's desire cannot



be undertaken in High Court limited jurisdiction. The special leave Petition filed before the Hon'ble Supreme Court of India by the components was dismissed vide order dated 24/8/2012 wherein it was observed that it is a civil dispute.

11) Thereafter the Civil Misc. Application no.6/2010/B for recall of compromise Decree was dismissed by the Civil Court vide Order dated 18/8/2016. However, after filing review application (2/2016/B) by an order dated 23/10/2018 the application was restored and the Hon'ble Civil Court directed to hold enquiry. This Order is challenged by Mr. Pascoal Trinidade by filing Civil Revision Application No.46/2018 which is pending before the Hon'ble High Court.

12) That, after execution of compromise decree dated 21/11/1998 Mr. Pascoal Trinidade purchased the properties baring survey No. 93/2,93/3 and 93/4 of village Bambolim, Tiswadi Taluka for consideration by three registered sale deeds dated 25/4/2006 from Ms. Dionisia e Mergulhao wife of deceased Maximo Meghulhao.

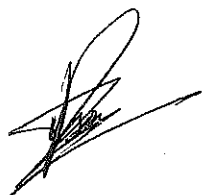
13) It is also found that Mr. Pascoal Trinidade had filed Civil Suit No. 6/2007 on 20/1/2007 against the persons



who had claimed tenancy rights in respect of the properties surveyed under survey No. 93/2,93/3 and 93/4 of village Bambolim Tiswadi Taluka. The said Suit was compromised on 25/1/2017 by deleting their names from other rights column.

14) That the three sale deeds executed in favor of Pascoal Trinidad in survey No. 93/2, 93/3 and 93/4 of village Bambolim of Tiswadi Taluka admeasuring 97,500.00 sq. mts were challenged by the Comunidade in Special Civil Suit No. 52/2013/A before Civil Judge, Senior Division, Panaji against Pascoal Trinidade and others after obtaining permission from the President, Administrative Tribunal, Panaji dated 8/10/2013. The copy of the plaint along with written statement is annexed as **Annexure VII**.

15) In the meanwhile it was found that Mr. Pascoal Trinidade and Mrs. Albertina Trinidade executed sale deed on 14/7/2014 during the pendency of Civil Suit 52/2013/A in favor of M/s. Loonkar Dev.P. Ltd. Mumbai in respect of the property bearing survey No. 93/2 of village Bambolim, Tiswadi Taluka admeasuring 35600.00 sq. mts. Hence M/s. Loonkar Dev.P. Ltd was joined as party defendant in Civil Suit No. 52/2013/A.



16) That it is revealed that sale deeds were executed by Mrs. Raghurai Tamba as well as Mrs. Dionisia Dias e Mergulhao with others in respect of survey No. 89/3 of village Bambolim Tiswadi Taluka and not in survey No. 90/1 of village Bambolim being agriculture tenanted land and hence no conversion is permissible. The sale deeds in respect of the properties bearing survey No. 89/3 and 90/1 of village Bambolim are challenged by Comunidade against Mrs. Dionisia Dias e Mergulhao (wife of late Maximo Mergulhao) Ms. Raghurai Tamba and others by filing Special Civil Suit No. 4/2014/A in the Court of Civil Judge, Senior division at Panaji which is pending.

17) It was revealed that Mrs. Dionisia Dias e Mergulhao through her constituted Attorney, Shri. Raghurai Tamba filed Special Civil Suit No. 15/2001/A on 12/02/2001 in the court of Civil Judge Senior Division at Panaji against the Shri. Rayu Ishwar Gauns and his wife Smt. Tulshi R. Gauns in respect of the property bearing survey No. 90/1 of village Bambolim. The Suit is decided by judgement dated 11/4/2001 directing the Mamlatdar of Tiswadi to delete the name of the defendant from revenue record form I & XIV.



- 18) That Mr. Pascoal Trindade filed an application on 13/1/2014 before the Civil Judge, Senior Division Panaji under Order VII rule 11(d) of CPC 2008 in Special Civil Suit No. 52/2013/A stating that the Suit is filed after many years and barred by limitation. The said application was rejected by the Hon'ble Court vide Order dated 30/7/2016 holding that it is mixed question of fact and law. Against this order Mr. Pascoal Trindade filed Civil Revision Application No. 46/2016 before the Hon'ble High Court, Bombay Bench at Panaji which is pending.
- 19) That subsequently by order dated 13/3/2020 the Civil Court passed order of injunction in Special Civil Suit No. 52/2013/A ordering the respondents No. 1 & 2 i. e (Pascoal Trindade & Mrs. Albertina Trindade) from starting any development and interfering the Suit property under survey No. 93/2, 93/3& 93/4 of village Bambolim till disposal of the Suit.
- 20) That the orders passed by the Hon'ble Civil Court dated 30/7/2016 in Special Civil Suit No. 52/2013/A and order dated 23/10/2018 in MCA 6/2010 are challenged by Pascoal Trindade in Civil Revision Application No. 46/2016 & 41/2018 respectively are pending before the Hon'ble High Court Bombay Bench at Panaji. There are also proceedings relating to tenancy



issue of these properties pending before Dy. Collector and SDO Panaji in case No. LRC 19/2009 as well as in the High Court.

- 21) Mr. Pascoal Trinidad & Mrs. Albertina Trinidad who are defendant No. 1&2 in Special Civil Suit No. 52/2013 submitted settlement proposal dated 20/11/2020 with respect to various litigation in respect to the properties under survey No. 93/2,93/3& 93/4 of village Bambolim Tiswadi Taluka to the Managing Committee Vide letter dated 20/11/2020. The copy of the letter dated 20/11/2020 is annexed as **Annexure VIII**.

The proposal settlement was as follows:

- a. **Transfer of settlement zone land admeasuring 5000.00 sq.mts.in any one out of above referred properties ie. Survey No. 93/2,93/3& 93/4 of village Bambolim Tiswadi Taluka duly demarcated and fenced to the Comunidade of Bambolim.**
- b. **Payment of compensation of Rupees Ten Crores (Rs. 10.00.000.00) to the Comunidade of Bambolim.**
- c. **Construction of cultural/ sports arena on above mentioned 5000.00 sq.mts. consisting of basketball**



court, badminton court, volleyball court, stage and ladies and gents toilets for the Comunidade of Bambolim.

Besides Mr. & Mrs. Pascoal Trindade has stated in the said letter (20/11/2020) that upon compliance and filing of consent terms all the disputes and litigations pertaining only to the properties surveyed under survey no. 93/2, 93/3 & 93/4 of village Bambolim will be withdrawn. Viz. Special Civil Suit No. 52/2013/A, Civil Suit No. 66/2009 as well as MCA 6/2010/B and also LRC 19/2009 pending in various courts and before DY. Collector at Panaji.

- 22) Since it was found M/s. Loonkar Dev. Ltd. Mumbai, has purchased the property bearing survey No. 93/2 of village Bambolim measuring 35600.00 sq. meters from Mr. & Mrs. Pascoal Trindade by a registered sale deed dated 14/7/2014 during pendency of Special Civil Suit No. 52/2013/A, the Comunidade sought clarification from M/s. Loonkar Dev. Pvt. Ltd. as the area of 5000.00 sq. meters under survey no. 93/2 is in their possession and M/s. Loonkar Dev. Pvt. Ltd. agreed to give the said area vide communication letter dated 30/12/2020 and that they will sign the consent terms along with Mr. Pascoal



Trinidad & Mrs. Albertina Trinidad. The copy of letter dated 30/12/2020 is exhibited as **Annexure IX**.

- 23) The proposal of Mr. & Mrs. Pascoal Trinidad was discussed by the Managing Committee in the ordinary meeting held on 6/12/2020 and resolved to place the said proposal before the components / gaonkars in the extraordinary general body meeting since the powers to withdraw and compromise Civil Suit has to be deliberated by the Comunidade components in accordance with Clause 4 (g) of article 30 of Code of Comunidades.
- 24) The extraordinary General Body Meeting of Comunidade was called on 3/1/2011 after publishing notice in the official gazette series III No. 37 dated 10/12/2020 and also in local newspaper dated 17/12/2020 to discuss and decide the settlement proposal received from Mr. and Mrs. Pascoal Trinidad dated 20/11/2020.
- 25) The said proposal was discussed in detail by the components in the general body meeting and taking into consideration the claim of Pascoal Trinidad under the three sale deeds dated 25/4/2006 in respect of properties surveyed No. 93/2, 93/3 & 93/4 of village Bambolim executed by Mrs. Dionisia Mergulhao (wife of deceased



Maximo Mergulhao) as well as pending suits filed by Comunidade viz. Civil Suit No. 66/2009 filed by Benevelo B.A. D'Souza and another (Comunidade being respondent transposed as applicant by Court order dated 16/10/2014) LRC 19/2009, MCA 6/2010 in 222/94, Special Civil Suit No. 52/2013/A CRA 41/2018, CRA 46/2016 and Writ Petition No. 558/2016 pending before the High Court. The general body also considered the orders challenged by Mr. Pascoal Trindade in Civil Revision Application No. 46/2016 and 41/2018 before the Hon'ble High Court of Bombay at Goa against the orders passed by the Civil Courts dated 30/7/2016 and 23/10/2018 and the order dated 13/3/2018 of temporary injunction passed in Civil Suit No. 52/2013/A. The Comunidade also discussed the purchase of land admeasuring 35600.00 sq.mts. in the survey no. 93/2 by Ms. Loonkar Dev. Pvt. Ltd. Mumbai, from Mr. Mrs. Pascoal Trindade by a registered sale deed dated 14/7/2014 during the pendency of Special Civil Suit No. 52/2013/A as well as pending tenancy issue.

- 26) The components noted that originally there were various names in their rights columns of these survey numbers and Pascoal Trindade got the names deleted by filing Civil Suit No. 6/2007 and thereafter converted the land by obtaining conversion Sanad, obtained technical



clearance approvals from Town and Country Planning Department and construction licenses from the village Panchayat of Curca, Bambolim and Talaulim in respect of properties surveyed under survey no. 93/2, 93/3, and 93/4 of Village Bambolim, Tiswadi Taluka also claimed that they have invested huge amount for development for which litigation has become long since the year 2009. The components of Comunidade also discussed the issue of delay in approaching the court in 2009 when Civil Suit no. 66/2009 was filed after compromise decree passed in the year 1998 and also tenancy issue raised in the proceedings.

- 27) In view of complicated issue of claim over the properties survey no. 93/2, 93/3, and 93/4 of Village Bambolim, the delay involved in getting the suits resolved through courts and liability towards payment of professional fees to the learned advocates appointed by Comunidade to defend the interest of Comunidade, from Trial Court to High Court the components arrived to the conclusion that if the settlement proposal is accepted, then it shall be in the interest of the Comunidade. Therefore the General Body after lengthy discussion unanimously resolved and approved the settlement proposal submitted by Mr. & Mrs. Pascoal Trindade in respect of the properties bearing survey no. 93/2, 93/3, and 93/4 of



village Bambolim under which it was agreed to allot land of 5000.00 sq mts. and payment of Rupees Ten Crores to the Comunidade. It was decided that upon acceptance of settlement proposal and filing of consent terms in special civil suit no. 52/2013/A, the pending civil suit No. 66/2009, LRC 19/2009 and MCA 06/2010 (in Civil Suit No. 222/94) will be amended in order to continue the claim in respect of the properties under survey no. 89/3 and 90/1 total admeasuring 37975.00 sq. mts. of revenue village of Bambolim and continue Special Civil Suit No. 04/2014/A and MCA 06/2010 (in Civil Suit No. 222/94) pending in the Civil Judge Sr. Division at Panaji and LRC 19/2009 pending before the Deputy Collector and writ petition no. 558/2016 pending in the High Court.

- 28) The General Body also noted that the properties surveyed under survey no. 89/3 admeasuring 32325.00 sq. mts. and 90/1 admeasuring 5650.00 sq. mts. of village Bambolim are presently in possession with M/s Raghurai Tamba and others after the compromise decree dated 21/11/1998 in special Civil Suit No. 222/1994 which decree and sale deeds are challenged in Civil Suit No. 66/2009, MCA 06/2010 in special Civil Suit No. 222/1994 and Special Civil Suit No. 4/2014/A at Civil



Courts and LRC 19/2009 and tenancy is pending before the Deputy Collector, North Goa, Panaji.

29) The learned advocate defending the interest of Comunidade was consulted on the said issue in view of settlement proposal submitted by Mr. & Mrs. Pascoal Trindade dated 20/11/2020 of 3 properties namely survey no. 93/2, 93/3, and 93/4 of village Bambolim and in respect of two properties that is survey no. 89/3 and 90/1. The learned advocate vide letter dated 04/12/2020 has clarified that the litigation and claim of Comunidade to the properties surveyed under survey no. 89/3 and 90/1 can be continued in a special Civil Suit No. 4/2014/A, 66/2009, LRC 19/2009 and MCA 6/2010 in Special Civil Suit No. 222/1994, while survey No. 93/2, 93/3, and 93/4 will be excluded by way of amendment of the proceedings in view of settlement.

30) In view of above clarification communicated by learned advocate defending the interest of Comunidade in the letter dated 04/12/2020, the components after lengthy discussion resolved and agreed to carry out necessary amendments in various suits and continue the suit litigation namely special Civil Suit No. 4/2014/A and other proceedings filed against M/s Raghurai Tamba as



well as Mrs. Dionisia Dias e Mergulhao and others after settling special Civil Suit No. 52/2013/A.

31) The consent terms drafted by learned advocate after discussion with the Managing Committee of Comunidade and agreed by Mr. & Mrs. Pascoal Trindade and M/s Loonkar Dev. Pvt. Ltd. and an application to delete the other defendants in special Civil Suit No. 52/2013/A to felicitate the compromise were discussed. The copy of draft consent terms is annexed as **Annexure X.**

32) After lengthy discussion the components of Comunidade of Bambolim in the extraordinary General Body meeting held on 03/01/2021 unanimously resolved and approved the settlement proposal given by Mr. & Mrs. Pascoal Trindade vide letter dated 20/11/2020 in survey No. 93/2, 93/3, and 93/4 of village Bambolim and also the consent, communicated by M/s Loonkar Dev. Pvt. Ltd., Mumbai vide letter dated 30/12/2020 to allot 5000 sq. mts. in survey no. 93/2 of village Bambolim, the general body of components decided that the consent terms should have approval from the Administrative Tribunal, Panaji in accordance with Article 154 (3), 349 & 350 of Code of Comunidades. The final plan of 5000 sq. mts under survey no. 93/2 of village Bambolim is being



prepared and tentative plan of 5000 sq. mts under survey no. 93/2 given by Pascoal Trindade which is annexed as **Annexure XI.**

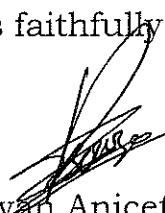
- 33) As per the resolution of the General Body the approval of this Hon'ble Tribunal need to be taken and then consent terms has to be filed before Hon'ble Court. Accordingly upon application dated 22/3/2021 and 5/4/2021 this Hon'ble Tribunal passed order dated 26/7/2021 to obtain approval of the Government.
- 34) Accordingly application dated 6/8/2021 was made to the Government. The Government by letter dated 23/12/2022 has opined that as per Article 31 of the Code of Comunidade prior to approval of Government is required pertaining to clauses (A) to (F) and (H) to (j) of Sub-Section 4 of Article 30 and the application of the Comunidade pertains to sub section 4(G) of Article 30 of Code of Comunidade and the powers vest with the Hon'ble Administrative Tribunal
- 35) Hence the Comunidade of Bambolim hereby submit the application again with a request your Honour to grant approval to compromise the Special Civil Suit No. 52/2013/A as per Article 350 of Code of Comunidades



considering the draft consent terms enclosed with this application at Annexure X mentioned above.

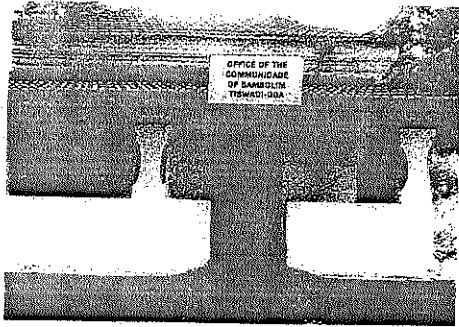
- 36) The Comunidade request your honour to communicate its decision as early as possible since there is direction of Hon'ble High Court to the Hon'ble Civil Judge Senior Division at Panaji to decide the Special Civil Suit No. 52/2013/A in time bound manner and the Hon'ble Civil Judge has fixed the matter on 19/1/2023 for filing consent terms.

Yours faithfully


(Mr. Ivan Aniceto Manuel Dsouza)

Attorney Comunidade of Bambolim





¹ *Comunidade de Bambolim*

Near Our Lady of Bethlehem Church
P.O. GMC Complex,
Bambolim, Tiswadi-Goa 403 202

Date: 9/1/2023

Ref. No. COM/BAM/PER/2022-2023/

To,
The Administrator of Comunidades
Central Zone, Tiswadi – Goa.

Subject: Request to forward application for Permission under Article 350 of Code of Comunidade to compromise Special Civil Suit no. 52/2013/A pending before Civil Judge Senior Division at Panaji Goa, in respect of properties surveyed under survey No. 93/2, 93/3 and 93/4 of village Bambolim Tiswadi Taluka.

Madam/Sir,

Please find enclosed herewith application bearing no. COM/BAM/Admn-Appl/2023 dated 9/1/2023 along with annexures with a request to forward the same to the Hon'ble President, Administrative Tribunal, Panaji to grant permission under Article 350 of Code of

Recd
by
09/01/2023

RECEIVED BY COMMUNITARIAN
CENTRAL ZONE, PANAJI-GOIA

Comunidades to compromise the Special Civil Suit no. 52/2013/A in respect of the properties surveyed under survey no. 93/2, 3 and 4 of Village Bambolim, Tiswadi Taluka pending before the Civil Judge Senior Division at Panaji.

In this connection, you may note that the components of Comunidade in the extra ordinary general body meeting held on 3/1/2021 resolved and approved the settlement proposal submitted by Mr. Pascoal Trindade, Mrs. Albertina Trindade and consented by M/S Loonkar Dev. Pvt. Ltd vide letter dated 20/11/2020 and 30/12/2020 respectively which are recorded in the Book of Actas (Minutes) at Pages 106 overleaf to 112 overleaf. Subsequently the Hon'ble Administrative Tribunal had directed to obtain approval of the Government for which application dated 6/8/2021 was submitted through your office.

By letter dated 23/12/2022 received by the Comunidade the Department of Revenue has informed the Collector North Goa that as per Article 31 of the Code of Comunidade prior to approval of Government is required pertaining to clauses (A) to (F) and (H) to (j) of Sub-Section 4 of Article 30 and the application of the Comunidade pertains to sub section 4(G) of Article 30 of Code of Comunidade and the powers vest with the



Hon'ble Administrative Tribunal. Hence the Hon'ble Administrative Tribunal has to decide the matter as per law. Under this letter the Comunidade is requested to take necessary action as per above decision of Government.

Considering above the Comunidade of Bambolim request you to forward the enclosed application along with annexures to the Hon'ble President, Administrative Tribunal, Panaji to grant permission under Article 350 of Code of Comunidades to compromise the Special Civil Suit no. 52/2013/A.

You are requested to forward the said application as early as possible since there is direction of Hon'ble High Court to decide the suit in time bound manner and the Hon'ble Civil Judge has fixed the matter on 19/1/2023 for filing consent terms.

Yours faithfully



(Mr. Ivan Anicete Manuel Dsouza)

Attorney Comunidade of Bambolim